CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

FIFTH SECTION

DECISION

AS TO THE ADMISSIBILITY OF

Application no. 44965/04
by Oldřiška KLICPEROVÁ
against the Czech Republic

The European Court of Human Rights (Fifth Section), sitting on 12 February 2008 as a Chamber composed of:

Peer Lorenzen, *President,*
Snejana Botoucharova,
Karel Jungwiert,
Rait Maruste,
Renate Jaeger,
Mark Villiger,
Mirjana Lazarova Trajkovska, *judges,*
and Claudia Westerdiek, *Section Registrar*,

Having regard to the above application lodged on 2 December 2004,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the case together,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant,

Having deliberated, decides as follows:

THE FACTS

The applicant, Ms Oldřiška Klicperová, is a Czech national who was born in 1931 and lives in Prague. The Czech Government ("the Government") were represented by their Agent, Mr V.A. Schorm, from the Ministry of Justice.

A. The circumstances of the case

The facts of the case, as submitted by the parties, may be summarised as follows.

On 12 July 1995 the applicant brought an action for damages against an agricultural cooperative before the Plzeň-Sever District Court (*okresní soud*), relying on the Land Ownership Act.

In a judgment of 24 November 1999 the District Court partly granted the applicant's claims.

On 18 January 2001 the Plzeň Regional Court (*krajský soud*) partly quashed and partly upheld this judgment. The relevant part case was remitted to the District Court which, on 11 June 2001, dismissed the remaining claims of the applicant's action.

On 30 January 2002 the Regional Court quashed the first instance judgment and sent the case back to the District Court which, by a judgment of 24 November 2004, partly granted the outstanding part of the applicant's action for damages.

In the mean-time, on 28 May 2003, the District Court had granted the defendant's request for re-opening of proceedings in respect of the valid part of the judgment of 24 November 1999.

On 12 May 2005 the defendant went bankrupt. The proceedings for damages were therefore interrupted pending the outcome of the bankruptcy proceedings. The applicant submitted her creditor's claims of 1 106 945 CZK 42 336 (EUR[1]) which were partly granted on 11 January 2006. It appears that the bankruptcy proceedings are still pending.

B. Relevant domestic law and practice

The relevant domestic law and practice concerning remedies for the allegedly excessive length of judicial proceedings are set out in the Court's decision in the case of *Vokurka v. Czech Republic*, no. 40552/02 (dec.), §§ 11-24, 16 October 2007).

COMPLAINTS

The applicant complained in substance about the length of the proceedings. She further alleged a violation of her rights guaranteed by Articles 5 § 1 (b), 8 § 1, 10 and 2 and 11 of the Convention.

[1] 1 EUR = 26.18 CZK

THE LAW

1. The applicant first complained about the excessive length of the proceedings which, according to her, was in breach of the "reasonable time" requirement laid down in Article 6 § 1 of the Convention which, so far as relevant, reads as follows:

> "In the determination of his civil rights and obligations ... everyone is entitled to a ... hearing within a reasonable time by [a] ... tribunal."

The Government noted that the applicant could have resorted to the compensatory remedy provided for by Act no. 82/1998.

The Court has already examined that remedy for the purposes of Article 35 § 1 of the Convention and found it effective in respect of certain complaints about the length of judicial proceedings in the Czech Republic. In particular, it considered that the remedy was capable of providing adequate redress for any breach of the reasonable time requirement that has already occurred (see *Vokurka v. Czech Republic,* cited above, §§ 58-65).

However, the applicant despite having been informed by the Court of the possibility of using this remedy maintained that she should not be required to exhaust such a remedy. It thus appears that she has chosen not to avail herself of this remedy.

The Court therefore considers that the applicant has not exhausted domestic remedies within the meaning of Article 35 § 1 of the Convention. This part of the application must therefore by declared inadmissible according to Article 35 §§ 4 of the Convention.

2. The applicant further alleged a violation of her rights guaranteed by Articles 5 § 1 (b), 8 § 1, 10 and 11 of the Convention.

The Court has examined the complaints as submitted by the applicant. However, having regard to all the material in its possession, and in so far as this complaint falls within its competence, the Court finds that they do not disclose any appearance of a violation of the rights and freedoms set out in the Convention.

It follows that this part of the application is manifestly ill-founded and must be rejected pursuant to Article 35 § 3 and 4 of the Convention.

3. In view of the above, it is appropriate to discontinue the application of Article 29 § 3 of the Convention and to reject the application.

For these reasons, the Court unanimously

Declares the application inadmissible.

Claudia Westerdiek
Registrar

P. Lorenzen
President